

****Extraordinary Commission for the Protection and Promotion of Human Rights****

****Senate of the Republic****

****Hearing of Prof. Ginevra Cerrina Feroni****

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I thank the Commission and its President, Sen. Stefania Pucciarelli, for the invitation to participate in this discussion, which I consider to be extremely important and, I would say, urgent. Among the less discussed aspects of AI, there is, in fact, the one related to its implications – which appear to be structural and profound – on human rights, despite the evident and transversal impact of this "disruptive" technology on freedoms and fundamental rights.

The defining peculiarity of AI is, as noted by the French philosopher Eric Sadin, its being a technique not so much and not only prosthetic – aimed at compensating for human deficiencies – but rather mimetic, capable of emulating human rationality and learning autonomously. These elements make AI absolutely innovative and not truly comparable to other technologies, also due to the unpredictability that can sometimes characterize its processes as well as the autonomy, in relation to human decision-making, that can often characterize its outcomes.

The widespread diffusion and transversality of AI in every sector of private and public life, much more significant than those of other technologies, also highlight the need to define a limit of ethical, political, and therefore also legal admissibility for the uses of AI. This is because, as Rodotà observed twenty-five years ago, not everything that is technically possible is therefore ethically admissible, legally permissible, or socially acceptable.

The continuous expansion and evolution of AI thus imposes the need to draw (and this is the utmost task of politics) a limit of sustainability, the pillars of Hercules that should not be crossed so that progress does not paradoxically become socially regressive.

Consider, by way of mere example, the projects for the use of AI in the neuroscientific field, with the realization of "semantic" decoders of neural activity, combining brain scanning and databases of linguistic models, such as those used by Chat GPT. In January, for the first time, a device capable of decoding neural signals was applied to a tetraplegic patient to make a robot perform actions that his limbs cannot do.

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This is a potentially revolutionary innovation, capable of bringing unprecedented benefits for the treatment of neurodegenerative conditions and, for this reason, deserving of development, provided that we do not reach the transparency of thought: a long-standing dream of dictatorships. The possibility of translating thought into algorithmic impulses is, in fact, a precious achievement on the condition that it is not used to read it, thus making accessible that internal forum whose confidentiality is a necessary prerequisite for freedom of conscience. The application of artificial intelligence in the neuroscientific field and, above all, brain reading systems, which are at least potentially capable of decoding thought, must therefore always guarantee, as the first of human rights, mental privacy, an inescapable condition of self-determination, an intangible prerequisite of freedom. Once the threshold of thought reading is crossed, the drift to be prevented is to make the person a freely accessible archive, whose ideas are laid bare with no space left for freedom, primarily of determination. This is one of many possible examples of how AI requires careful regulation, primarily to direct its development in the service of humanity and not vice versa, for the promotion and certainly not for the violation of human rights.

Another aspect worthy of consideration concerns biases (algorithmic distortions, prejudices) that may characterize the algorithmic decision-making process, often with discriminatory outcomes. The algorithm is, in fact, not neutral but reflects, even amplifying, the preconceptions of those who design it and the potential incompleteness of the data with which it is trained. This often results in discriminatory outcomes even more than those that, paradoxically, the cold rationality of the machine should have avoided. There are numerous cases of arrests of individuals completely unrelated to the facts due to the error of the facial recognition algorithm used in some American states, trained on a dataset that is not sufficiently representative of the somatic traits of all ethnicities.

The under-representation of the data spectrum on which algorithms are trained has proven to be profoundly distorting, especially when used in judicial settings. Consider the Compas algorithm for predicting criminal recidivism, used by some American courts, which tends to assign a higher recidivism risk score to African Americans because it was trained on statistical data related to the ethnic composition of the U.S. prison population (largely composed of those who, lacking the means to access bail, can only serve their sentences in prison). The algorithm inferred, in short, from the factual, inevitably partial, data of the ethnic background of inmates a causal link that is actually non-existent from a criminological perspective, thus tainting the judgment on the risk of recidivism with a discriminatory bias. And while algorithmic discrimination has more significant effects in the judicial context, it

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however, it can have an impact on human rights, on the principle of equality, and on the protection of personal dignity, which is no less relevant in any other sector in which it manifests. There is, for example, this concern underlying the prohibition of social scoring introduced by the Artificial Intelligence Act, with the risk of anti-democratic drifts similar to those of the "point citizenship" system in China.

Another significant and "systemic" point of impact of AI on human rights concerns its use in the law enforcement sector. The recourse to AI in investigative contexts requires precautions that prevent the risk of delegating to the algorithm activities that could potentially infringe on personal freedom and lead to mass surveillance. What is feared is not so much, and not only, the "slippery slope," but the tendency towards uncritical social acceptance of a progressive limitation of freedom. This concern, for example, underlies the prohibitions and limits placed, with undeniable foresight, on predictive policing and biometric categorization systems by the Artificial Intelligence Act.

To understand the degree of impact of AI on human rights, it is useful to start from this text, particularly significant as the first general regulation of AI in the world, considering that the American framework is merely an Executive Order directed, as such, at federal agencies only and with rather limited content. It is significant that the "primacy," both chronological and axiological, in regulating this extraordinary technology belongs to Europe. Each of the provisions of the AI Act is, in fact, underpinned by a clear line of legal policy, which expresses the very identity of the European Union as a "community of law." The aspiration to make AI "trustworthy" speaks volumes about the European idea of innovation as such only if it is sustainable from a democratic and rule of law perspective, based primarily on the guarantee of fundamental rights and freedoms, as enshrined in the Charter of Nice.

Article 1, along with C 1, identifies the protection of fundamental rights as one of the main objectives of AI regulation, and throughout the entire regulatory framework, it constitutes both a protective goal and a parameter of admissibility—as well as a regulatory standard—for algorithmic systems. The impact on fundamental rights is, in fact, a criterion for assessing the risk associated with the AI system that guides its placement within the complex taxonomy outlined by the regulation and, at the same time, is the specific subject of the impact assessment necessary for the use of certain high-risk AI systems.

C 48 clarifies, in fact, that "The extent of the negative impact of the AI system on the fundamental rights protected by the Charter is particularly relevant for the classification of an AI system among those at high risk. Such rights include the right to human dignity, respect for private and family life, protection of personal data, freedom of expression and information, freedom of assembly and association and non-discrimination, the right to education, consumer protection, workers' rights, rights of persons with disabilities, gender equality, intellectual property rights, the right to an effective remedy and to a fair trial, defense rights and the presumption of innocence, and the right to good administration," as well as the specific guarantees granted to minors.

It is also significant that: the definition of incident and systemic risk is based on the impact on fundamental rights; that it is subject to human oversight imposed by Article 14; that the human rights dimension is a specific competence that the personnel of the notifying authority must possess (Article 28, p.7) and generally of the competent authorities (Article 70, p.3); that the impact on fundamental

rights is a parameter for evaluating regulatory experiments (Article 57, p.11); that the authorities tasked with protecting such rights are granted specific powers (Article 77) and are subject to a precise obligation of consultation (Article 82); that the impact on fundamental rights underpins a specific right to an explanation of the decision-making process of a high-risk AI system (Article 86).

C 110 also includes among the systemic risks that may arise from AI for general purposes the "ways in which models can lead to harmful biases and discrimination with risks for individuals, communities, or societies; the facilitation of misinformation or the violation of privacy with threats to democratic values and human rights."

Particular attention is then reserved, by C 60, to high-risk systems used in the migration, asylum, and border control sectors due to the particular vulnerability of the individuals involved, such that "the accuracy, non-discriminatory nature, and transparency of the AI systems used in such contexts are therefore particularly important to ensure the...

****Respect****

for the fundamental rights of the individuals concerned, particularly their rights to free movement, non-discrimination, protection of private life and personal data, international protection, and good administration. Oversight of the use of AI in such contexts, for countering activities, as well as for the purposes of "justice and democracy," is, moreover, specifically reserved (art. 74, p.8) to data protection authorities, with the awareness, evidently, of the experience gained in the application of what is the core of AI: automated decision-making based on personal data. In this regard, both the GDPR and Directive 2016/680 on the processing of personal data in the area of criminal justice and police ensure, in fact, some

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essential guarantees: the principle of intelligibility (which excludes the legitimacy of black-box algorithms by recognizing the right to receive meaningful information about the logic used), the principle of non-exclusivity of algorithmic decision-making which imposes a human intervention capable of controlling, validating, or refuting the automated decision, the prohibition of algorithmic discrimination, a general principle of transparency that imposes precise informational obligations towards the user, a criterion of quality and accuracy of the data to be used, particularly relevant to avoid biases inherent in training the algorithm based on inaccurate or insufficiently representative information. The specific guarantees granted in the processing of minors' data have also proven to be decisive in ensuring the necessary control over the access of those under fourteen to some of the content offered by these chatbots, deemed inappropriate (for example, because sexually explicit) for their level of cognitive, ethical, and personal development.

The principles enshrined in privacy regulations have thus already assumed a decisive value in the democratically sustainable regulation of algorithmic processes, to the extent that they have allowed, for example, administrative jurisprudence to find the regulation of certain specific cases and, indeed, for the Authority to align the use of AI with the values of the constitutional and European legal order and, primarily, with the protection of human rights.

In light of the disruptive impact of AI on human rights, it should then be considered whether to accompany the Market Notification and Surveillance Authorities, which the Government has indicated in Agid and Acn for the purposes of the Artificial Intelligence Act, with a single Authority that exercises the powers reserved to it by art. 77, overseeing, among other things, and with a comprehensive, not fragmented, perspective on the impact of AI on human rights.

This could be, in particular, the opportunity for the establishment, long hoped for but never realized by too many legislatures, of the Independent Authority for the Protection of Human Rights with requirements corresponding to those set forth by the Paris Principles (including real independence from the Government) and extended competence, among other things, to the impact of AI on human rights. It is such that it does not advise, in fact, further fragmentation of competencies among various Authorities and requires a unified attribution to ensure a uniform application of the guarantees enshrined on the matter by the various regulatory frameworks: the AI Act but also the GDPR and Directive 2016/680, primarily.

1 Despite the acceptance, in the last legislature, of the Order of the Day G/2481/5/14 [previously em. 13.0.1 (text 2)] Casolati

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One could then resume the examination of some bills already assigned to the 1st Commission - some of which, moreover, attribute to the Data Protection Authority the powers of the Human Rights Authority - with the awareness of how the revolution connected to AI requires, for the protection of the rights and fundamental freedoms it affects, unified, qualified, independent competencies. And this, also in light of the limits and aporias that the majority rule presents, as Norberto Bobbio taught, in the face of that "border territory" represented by the rights of freedom. Thank you.

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